
Journal

2006 PLD 28

Court

SUPREME COURT OF AZAD JAMMU & KASHMIR

Date

2005-06-20

Appeal No.

CRIMINAL REVIEW PETITION NO. 3 OF 2005

Judge

KHAWAJA MUHAMMAD SAEED, C.J., SYED MANZOOR HUSSAIN GILANI AND KHAWAJA SHAHAD AHMED

Parties

THE STATE THROUGH ADVOCATE GENERAL PETITIONER VERSUS HAKAM DEEN AND 15 OTHERS (RESPONDENTS)

Lawyers

RAJA IBRAR HUSSAIN, ADVOCATE-GENERAL FOR THE STATE.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 173(5) INTERPRETATION OF STATUTE AZAD JAMMU AND KASHMIR INTERIM CONSTITUTION ACT (VIII OF 1974) - S. 42-D AZAD JAMMU AND KASHMIR SUPREME COURT RULES, 1978 - O.XLVI, R.I

Judgment

SYED MANZOOR HUSSAIN GILANI, J.-This petition for review of the order of this Court dated 21-4-2005 passed in Criminal Appeal No. 29 of 2004, is filed under section 42-D of the Azad Jammu and Kashmir Interim Constitution Act, 1974 read with Order XLVI, Rule 1, of the Supreme Court Rules, 1978. Through the order under review, this Court was pleased to order and declare as follows in paras.60 and 61:-

“60. In view of above, we are constrained to declare the trial as vitiated and set aside the order passed by the Shariat Court and District Criminal Court Muzaffarabad on 3-12-2004 and 5-10-2004 respectively. The case is remanded to the District Criminal Court Muzaffarabad for afresh trial in accordance with law as discussed above, it is brought to our notice that accused was on bail during trial, if so, he will remain as such subject to same terms and conditions.

61. In view of legal position emerging from above discussion, we feel it expedient to direct as follows for observance by all the Courts in Azad Jammu and Kashmir that:- (1) The cases shall be taken up for trial, hearing and decision in order to pendency, however, if it is otherwise inevitable, reasons shall be recorded for it:

(2) Trial in criminal cases shall be completed within reasonable time by strictly following the procedure laid down in Chapters XX and XXII-A of the Code of Criminal Procedure, as the case may be irrespective of any direction otherwise;

(3) Witnesses in criminal cases shall be called after the accused is charge-sheeted, and trial shall continue till the entire evidence is recorded, unless reasonable circumstances duly recorded otherwise warrant;

(4) In the cases of Qisas, Diyat or Tazir, if the parties seek adjournments of or negotiating compromise, Court shall allow reasonable time for it, failing which trial shall be concluded and case decided within a reasonable time from the date of conclusion of trial; and

(5) The trial for the purpose of this order shall be deemed to have commenced from the date when the trial starts after taking cognizance. ”

2. The only ground for review as stated in para. 6 of the review petition is as follows

“6. The above said judgment of the apex Court dated 21-4-2005 merits review and reconsideration by the apex Court among others on the following grounds:-

(i) That under section 173 subsection (5) it is mandatory that the officer incharge of the Police Station while forwarding report under section 1 subsection (1) shall along with report produce the witnesses in the case, except the public servants, and the Magistrate shall bind such witnesses for appearance before him or some other Court on the date fixed for trial. While deciding the case this provision of law has fallen short of the eye of the apex Court and the apex Court held in para. No.61 sub-para (3) of the judgment that witnesses in criminal cases shall be called after the accused is charge-sheeted, which is not warranted by law on the subject.

(ii) That the point agitated above amounts to legal error apparent on the face of the record justifying a review of the judgment of the apex Court.

”

3. We have heard the learned Advocate-General and considered the points agitated before the Court. We are sorry to observe that the jurisprudence of procedural law and sub-para (3) of para. 61 of the judgment under review is either not comprehended or misunderstood.

4. The provisions of section 173 subsection (5) on the basis of which the review of above sub-para. (3) is sought, finds place in Chapter XIV of the Code of Criminal Procedure which relates to "information to the police and their powers to investigate." It begins with section 154 under which information in cognizable cases is given to the incharge of the police station and ends with "the inquiry by Magistrate into cause of death".

All the sections in between relate to inquiry, investigation, recording of statement by the police, police officers powers to require the attendance and examination of witnesses, powers to record confessional statement, search, arrest and release of accused, diary of proceedings in investigation, report of police officer to the Court, report in suicide cases and inquiry by Magistrate into cause of death. No provision under this chapter relates to procedure of trial of cases by the Court.

5. While deciding the case under review, the Court has thoroughly dilated upon the power and authority of the trial Court in trial of cases, not the powers or duties of the investigating authority in investigating or filing the report before the Court. It is surprising that the distinction between the investigation by police and trial by Court is not understood. Former relates to the pre-trial procedure by Investigating Officer or Magistrate, as the case may be, while the later relates to trial of the case on the basis of the report after investigation or inquiry as the case may be. This Court was requested to decide the procedural irregularities during trial, not pre-trial procedures. The Court has confined to that, and directions also emanate from that alone.

6. Although this reason alone is sufficient for dismissal of this review petition, however, to make the matter clearer for the law and the judicial officers, who are caught in the quagmire of miscomprehension in distinguishing between the investigation and trial, we deem it necessary to explain the position so that jurisprudence of procedural law is understood.

7. When a report under subsection (1) of section 173 is filed by the police officer before the competent Court, the police officer, besides completing and complying with other formalities provided by this section, is obliged under subsection (5) of section 173 (introduced in 1992 in the Code of Criminal Procedure) to produce the witnesses of the case before the Magistrate who shall bind such witnesses for appearance before him or some other Court on the date of fixed for trial. This obligation is on the police officer who is incharge of the police station where the case is registered and relates to investigation. The trial Court has nothing to do with it and it does not relate to trial procedure. The purpose is to satisfy and ensure that the officer incharge of the police station does have the witnesses in support of the report he is filing in the Court and Magistrate can bind them for their appearance at the time of trial of the case by the Court and nothing beyond that. This provision is analogous to section 217, Cr.P.C. relating to committal proceedings which stands abolished. The provision was:-

"217. (1) Complainants and witnesses for the prosecution and defence, whose attendance before the Court of Session or High Court is necessary and who appear before the Magistrate, shall execute before him bonds binding themselves to be in attendance when called upon at the Court of Session or High Court to prosecute or to give evidence, as the case may be.

(2) If any complainant or witness refuses to attend before the Court of Session or High Court, or execute the bond above directed, the Magistrate may detain him in custody until he executes such bond, or until his attendance at the Court of Session or High Court is required, when the

Magistrate shall send him in custody to the Court of Session or High Court, as the case may be.” After abolition of committal proceedings, a difficulty was felt that witnesses do not appear at trial as used to be during committal proceedings.

So this provision was introduced, however, without making necessary amendments in the other corresponding provisions of the Code. It caused practical difficulties, causing more harm to parties particularly to witnesses. The witnesses were subjected to the agony of being dragged thrice.

Once before the Investigating Officer to state under section 161, then before the Magistrate at the time of report under section 173(1), and then appearing for evidence before the trial Court. It deterred the witnesses to forthcoming. Hence its application became practically impossible, thus it was never acted upon and in spite of being on the statute book, it is practically a redundant provision.

8. The provision in the committal proceedings, was nicely acted upon as all other provisions spreading from sections 206 to 220 were compatible with it. The statements of the witnesses were recorded by the Magistrate. If a case triable by Sessions Judge was made out, the accused was charged and committed, and if not, he was discharged. In case of charge, the Magistrate used to get bond executed only from those witnesses whom he deemed necessary, not every one.

9. In the provision i.e. 173(5), the Magistrate is not authorized to record the statement of any such witness. He is to bind him. Whether binding authorises him to take personal or surety bond is not visualized by the provision. In the absence of a binding nature of action, how can the failure to appear be punished, is also not visualized.

10. It appears that all that was intended to achieve keeping in view the old experience of committal proceedings, it could not be spelled in the words of law, thus the practical application of provision became redundant.

11. It was in this background that we ordered that after the accused is charged, the trial shall continue till entire evidence is recorded.

12. Its redundancy is otherwise apparent as the witnesses are to be produced before the trial Court “when the accused does not plead guilty or the Court in its discretion does not convict him on his plea,” under sections 244 or 265-F of the Code of Criminal Procedures, as the case may be, irrespective of the fact whether the witnesses are produced before the Magistrate and he binds them or not under section 173(5), Cr.P.C.

Moreover, if the accused is not charged, question of production of witnesses does not arise whether Magistrate binds them or not.

13. Notwithstanding the duty of prosecutor to produce the evidence in support of the case, the trial Court is also duty bound to summon any person likely to be acquainted with the facts of the case to give evidence for the prosecution under subsection (2) of section 265-F, whether he is cited by the police as a witness or not.

14. We have consciously used the word redundant in relation to subsection (5) of section 173, Cr.P.C. although it is on the statute book, for the reason that it is superseded by the provisions of sections 244 and 265-F of the Code of Criminal Procedure. In case of inconsistency and conflict between the two, the later which directly relates to the matter, overrides the earlier. This is a

settled principle of jurisprudence which is accepted in the civilized world of jurisprudence.

15. The Courts have to harmonize the provisions of law in case any repugnancy or inconsistency is found in different provisions of law, and it shall adopt such view, which is in consonance with the spirit of the law and purpose for which it is enacted. The Courts are obliged to apply and interpret the law in a manner that it advances the cause of justice at the least inconvenience and expenses of the parties or State. That is why this provision is not adhered and is deemed by the Courts to be redundant.

16. The Courts are authorized to compel the attendance of all the witnesses as soon as the charge is denied by the accused and trial is begun. It is from this stage onwards that the Court can bind down the prosecutor and officer incharge of the police station to keep available all the witnesses for recording their statements, and as held in para. 61, the trial shall continue till the entire evidence is recorded, unless reasonable circumstances duly recorded otherwise warrant. Chapters XX and C XXII-A deal with the production of prosecution evidence before the trial Court, hence these override all other provisions.

17. We have noticed that there are expressed and implied inconsistencies between different clauses of section 173 and sections regulating the trial under the Code of Criminal Procedure, besides different provisions of the Islamic Penal Laws Act, 1974, dealing with the procedure.

Besides implied repugnancies, the expressed repugnance is manifest between subsection (4) of section 173, Cr.P.C., sections 241-A and 265- C of the Code of Criminal Procedure.

18. Under subsection (4) of section 173 the copy of the report forwarded by the police officer under subsection (1) of section 173 can be furnished to the accused on his application and subject to payment, unless the Magistrate for some special reasons thinks fit to furnish it free of cost. While under sections 241-A and 265-C of Cr.P.C., the documents mentioned therein shall be supplied free of cost to the accused not later than 7 days before the commencement of the trial. Similar are the rules of the criminal trial, 1948. This Court in the case titled State through Ehtesab Bureau v. Khalique-ur-Rehman and 3 others 2001 YLR 2936 held these rules to be binding. These repugnancies have to be kept in mind by the Courts while trying and deciding the cases.

19. All the cases, which arose out of offences provided by the Islamic Penal Laws Act, 1974, stand incorporated in the Penal Code, through amendment in the Code of Criminal Procedure (Amendment) Act, 1995. A few sections, of only procedural nature, have remained in the Islamic Penal Laws Act, 1974. A special section 6-A is added in the Code of Criminal Procedure through the amendment whereby the Courts provided in the Islamic Penal Laws Act are established in the Criminal Procedure Code. The Courts visualized by the Islamic Penal Laws Act, are now a part of the Criminal Procedure Code, not of the Islamic Penal Laws Act.

20. A general provision under section 8 was incorporated in the D Azad Jammu and Kashmir Shariat Court Act, 1993, substituting Courts provided by the Code of Criminal Procedure by the Courts mentioned in Islamic Penal Laws Act (which are now under section 6-A of the Code). It may be reproduced as:- "8. Application of Code of Criminal Procedure, 1898 (Act V of 1898) and amendment.-The provisions of the Code of Criminal Procedure, 1898 (Act V of 1898), shall apply, mutatis mutandis, in respect of cases under this Act:

Provided that in the said Code the words High Court, Sessions Court, and Magistrate First Class wherever occurring, shall be construed to mean the Azad Jammu and Kashmir Shariat Court, District Criminal Court and Tehsil Criminal Court, as the case may be, for the purposes of this

Act.”

21. This amendment overrides the provisions of the Code of Criminal Procedure and wherever the word High Court, Sessions Court, and Magistrate First Class is used, it is to be read as Shariat Court, District Criminal Court and Tehsil Criminal Court. So is held by the Supreme Court of Azad Jammu and Kashmir in the case reported as Muhammad Bashir v. The State [1992 SCR 33], when it was confronted with this proposition in a bail matter. It was held that “The scheme of the Code of Criminal Procedure, in respect of bail matters, is contained in sections 497 and 498. The trial Court can release a person on bail but cannot accept pre-arrest bail. The High Court and the Sessions Court have been authorized to grant bail in any case. The powers granted to p? these Courts can be exercised co-extensively. No such scheme is incorporated in the Islami Tazeerati Quaneen Nifaz Act. This Act does not lay down that the Shariat Court or the District Criminal Court shall have the power of granting pre-arrest bail or that these Courts would be authorized to grant bail in any case which may not be pending with it. Section 32 of the Act does lay down that where a specific provision is not made in respect of any matter in that Act then in respect of the matter Code of Criminal Procedure would apply but Code does not make any mention of the Shariat Court or the District Criminal Court. It is for this purpose that section 8 of the Shariat Court Act, reproduced above, has been enacted. This section adequately meets the requirement of providing the necessary linkage. It is clear that the scheme of the Code of Criminal Procedure in respect of bail matters is thus fully applicable to the cases of Islami Tazeerati Quaneen Nifaz Act.”(Underlining is ours).

22. A new dimension is given to the Criminal Procedure Code in Azad Jammu and Kashmir by the Criminal Procedure Amendment Adaptation Act, 2002. In the new Code, besides Chapter XX of the Cr P C visualized by section 28 of the Islamic Penal Laws Act, which is still on the Statute Book, Chapter XXII-A is added providing procedure to be adhered by the High Court and Court of Session in trial of the cases before it. In view of section 8 of the Shariat Court Act, referred above, the word High Court and Court of Session occurring in Chapter XXII-A shall be construed to mean the Shariat Court and the District Criminal Court. Hence, the chapter operates for trial of the cases by the Shariat Court and District Criminal Court. As far section 28 of the Islamic Penal Laws Act is concerned, it shall be operative to the extent of Chapter XX, for trial before Tehsil Criminal Court only.

23. As almost all the procedure of the Evidence Act and the Penal Sections relating to Hadood, Qisas, Tazeer and Diyat enacted though special law in Islamic Penal Laws Act, also stand incorporated an adopted in Azad Jammu and Kashmir through Qanun-e-Shahadat Order, the Code of Criminal Procedure and Penal Code, as well, hence all these laws have to be construed and interpreted jointly, so as to avoid contradictions, inconsistencies and repugnancy.

24. The provisions of law are not to be applied in isolation of each other, but simultaneously in juxtaposition to each other, Syed Saad Bin Zarif v. The State 1993 PCr.LJ 223. When there are two conflicting and inconsistent provisions, one which advances the cause of justice and of the law, that has to be preferred over the other. When there are different provisions susceptible to different meanings, these shall be so comprehended and applied, that the purpose of law is carried into effect with least or minimum inconvenience and expense to the parties.

25 This Court after due deliberation and full assistance of the learned Advocates has passed the judgment under review. The Court has thoroughly gone through all the relevant provisions of law and has formed the view, which in its estimation, is most befitting and practicable given the scheme of Constitution and law. Once the Supreme Court arrives at a conclusion on a point of law and issues any direction, all the executive and judicial authorities throughout Azad Jammu and Kashmir are bound to enforce the same and act in aid of the Supreme Court under section

42-A of the Interim Constitution Act. The scope of review on a point of law unless it is prima facie in violation of any provision of Constitution or law, is negligible. Consistent with this Court's earlier view on the point of review that the points finally resolved one way or the other cannot be reopened, unless there is a mistake apparent on the fact of record. Even incorrectness of a decision on a particular issue or question falling for determination in a case can never be a ground for review nor can the review be allowed merely on the ground that a party to it conceives himself to be dissatisfied with the decision. It is the prerogative of the Court to pronounce what the law is or what does it mean, not for a party to expect in the way it wants. We may refer the following cases of this Court on this point:-

(1) Alam Din v. Mayor Municipal Corporation Mirpur and 4 others 2000 YLR 1891.

(2) Ch.Mehmood Ahmed v. Haji Muhammad Idrees and another 2001 YLR 3237.

(3) Allah Ditta and others v. Mehrban and others 1992 SCR 145;

(4) Arshad Mehmood Shah and 2 others v. Chairman AKLASC and 10 others 2003 SCR 306;
and

(5) Azad Government v. Muhammad Suleman and 6 others 2003 SCR 423.

26. Before parting with it, we observe, without directing, that if the State feels so concerned, it can amend the law so as to create harmony and compatibility in different provisions of the Code.

In view of above, no legal error being involved in the judgment under review this application does not warrant admission, which is hereby dismissed.

(Sd.) KHAWAJA MUHAMMAD SAEED, C.J.

(Sd.)

SYED MANZOOR HUSSAIN GILANI, J

KHAWAJA SHAHAD AHMED, J.-This petition for review against the order of this Court dated 21-4-2005 passed in Criminal Appeal No.29 of 2004 is filed under section 42-D of the Azad Jammu and Kashmir interim Constitution Act, 1974 read with Order XLVI, Rule 1 of the Supreme Court Rules, 1978.

2. I have gone through the proposed order recorded by my learned brother Mr. Justice Manzoor Hussain Gillani in Review Petition No.3 of 2005 filed on 21-5-2005.with utmost respect I find myself unable to agree with the proposed judgment on the ground enumerated in the later part of this order.

3. The review petition has been filed only on one point which is reproduced below:-

“(i) That under section 173 subsection(5) it is mandatory that the Officer Incharge of the Police Station while forwarding report under section 1 subsection (1) shall along with report produce the witnesses in the case, except the public servants and the Magistrate shall bind such witnesses for appearance before him or some other Court on the date fixed for trial. While deciding the case, this provision of law has fallen short of the eye of the apex Court and the apex Court held in para. No.61 sub-para (3) of the judgment that witnesses in criminal cases shall be called after the accused is charge-sheeted which is not warranted by law on the subject.

(ii) That the point agitated above amounts to legal error apparent on the face of the record justifying a review of the judgment of the apex Court.”

Before proceedings any further or recording any finding it appears appropriate to discuss the scope of review under law and the case-law pronounced by the superior Courts of Sub-Continent from time to time. The scope and nature of review proceedings in a criminal case in the apex Court are definitely limited to error apparent on the face of record which must be so manifest and so clear that no Court could permit such an error to remain on record. It may be an error of fact or law but it must be an error which is self-evident and flouting on the surface of the judgment and does not require any elaborate discussion or process of ratiocination. In the present case the codified law i.e. Islamic Penal Laws Act and its different provisions particularly the one relating to procedure to be followed by Tehsil Criminal Court and District Criminal Court appears to have escaped the attention of the Court. Therefore, review on the point raised in the review petition needs detailed consideration in view of the reasons mentioned hereinafter.

4. Section 173 subsection (5) of the Code of Criminal Procedure was introduced in Pakistan through amended Act No.XXV of 1992 with effect from 12-12-1992 and in view of Act XIII of 2001 [which up to this time stands repealed by Act VII of 2002 known as Criminal Procedure (Amendment) (Adaptation Act, 2002) and certain other orders issued from time to time has been made applicable in Azad Jammu and Kashmir. Before this amendment, section 173, Cr.P.C. had only four subsections which provided procedure for filing final report by the police to the Court or the Magistrate for commencement of trial. Newly-inserted subsection (5) provided another duty of the Investigating Officer to produce witnesses of the case before the Magistrate and entrusted the power to the Magistrate to bind the witnesses for appearance before him or some other Court on the date fixed for trial. Section 173 although falls under Chapter XIV which relates to process to be adopted during investigation or the inquiry by police, yet from the very language of this section, it is clear that it closes the process of investigation and provides first step towards trial. It does not need any further detail that the report under section 173 becomes final only when it is placed before the Court or the Magistrate. This section also provides procedure for filing of interim report if the investigation has not been completed but subsection (5) does not apply to interim report which specifically provides a reference to subsection 1(a) of section 173, Cr.P.C.

Therefore, the legal position on the point is that the police officer has to produce the witnesses before the Magistrate or the Court only when he files final report under section 173, Cr.P.C.

5. On 5th September, 1974, Azad Jammu and Kashmir Islamic Penal Laws (Enforcement) Act, 1974 (hereinafter to be referred as IPL Act) was enacted and enforced in Azad Jammu and Kashmir. This Act was introduced as first codified law in respect of Islamic Penal Laws, establishment of Courts, procedure to be followed, quantum of evidence and the sentence to be passed by the Courts. It consisted of certain provision from the Penal Code, Cr.P.C. and the Evidence Act and also introduced certain provisions foreign to the English/Indian law as adopted in Pakistan which included purgation of witnesses and the right of heirs to compromise. According to section 28 of the said Act, the cases under Islamic Penal Laws are to be tried according to procedure laid down by Chapter XX of Cr.P.C. Section 28 is available in IPL Act till now and has not been repealed so far.

6. In 1995 certain amendments were introduced in Pakistan Penal Code and Criminal Procedure Code of 1898 and sections 53, 54, 55, 55-A, 109, 299 to 338 of P.P.C. and sections 6, 6-A, 32, 337, 338, 345, 381, 402, Cr.P.C. were repealed, altered or re-defined and the remaining provisions of IPL Act were kept intact. Section 6-A was enacted to include two Members Court with the assigned name in “Classes of Criminal Courts” in the Cr.P.C. To elaborate the legal

position in Azad Jammu and Kashmir sections 6 and 6-A of Cr.P.C are reproduced below: -

“6. Classes of Criminal Courts. -Besides the High Courts and the Courts constituted under any law other than this Code for the time being in force, there shall be five classes. of Criminal Courts in Pakistan, namely:-

(i) Courts of Session; (ii) Omitted by A.O. 1949;

(iii) Magistrate of the first class;

(iv) Magistrate of the second class;

(v) Magistrate of the third class.

6-A. District Criminal Court and Tehsil Criminal Court.-In addition to the Courts mentioned in section 6 there shall be the following Courts, as provided in the Islami Tazirati Ouwanin (Nifaz) Act, 1974:-

(i) District Criminal Court;

(ii) Additional District Criminal Court;

(iii) Tehsil Criminal Court; and

(iv) Additional Tehsil Criminal Court. ”

It is clear from above that the District Criminal Courts and Tehsil Criminal Courts are in addition to classes of Courts provided by section 6, Cr.P.C. and the newly-enacted section 6-A does not substitute any Court or class of Magistrates established under section 6, Cr.P.C. or section 7 of the same Code which deals with territorial divisions of the Courts of Session.

7. A perusal of these two amended laws shows that it does not even change the application of Chapter XX, Cr.P.C. which has to apply in trial of cases before the Courts constituted under Islamic Penal Laws Act, 1974 and included in Cr.P.C. through section 6-A.

8. By Act XIII of 2001 the amendments introduced in Cr P C 1898 have been made applicable in Azad Jammu and Kashmir which amongst others includes Chapter XXII-A. Through the judgment under review it has been held that for the Courts established under IPL Act and included in Cr.P.C. through section 6-A, the applicable procedure shall be one provided by Chapter XXII-A, Cr.P.C. and the trial conducted by District Criminal Court Muzaffarabad has been vitiated on the ground that the procedure provided by Chapter XXII-A has not been followed.

In the judgment under review it was also held that subsection (5) of section 173, Cr.P.C. is not applicable in the cases to be put for trial before the Criminal Courts or the Courts of Session as separate procedure has been provided by sections 265-A to 265-F, Cr.P.C. It will be useful to mention here that Chapter XXII-A was introduced in Cr.P.C. in 1976 in Pakistan. Although it has been adopted in Azad Jammu and Kashmir but in my considered view it does not apply in this part of the State particularly to the cases triable by two Members Courts known as Tehsil Criminal Court and District Criminal Court. This view is based on section 28 of the IPL Act, the English translation of which is as follows:-

“Section 28.-Under this Act the procedure for hearing of cases shall be the same as is provided

under Chanter XX of the Code of Criminal Procedure 1898, however, the Court of competent jurisdiction shall have the power to record the statement of accused on oath and such statement shall effectively be admissible in evidence against the accused. ”

9. There is another aspect of the case. A comparative study of the provisions of IPL Act and Cr.P.C. shows that in Azad Jammu and Kashmir the Shariat Court of appeal and revision as far as the Islamic Penal Laws are concerned, the Shariat Court has not been vested with original jurisdiction to try a case. Therefore Chapter XXII-A cannot be stretched to include trial before the Shariat Court as the Court is not vested with this jurisdiction.

10. In view of above, the legal position, as far as the procedure to be adopted by the Courts is concerned, is as under:-

(i) If a case is to be tried by a Magistrate only and the same falls under any law applicable in Azad Jammu and Kashmir, it shall be tried as provided by Chapter XX, Cr.P.C. or under the provisions provided for trials by the Act itself.

(ii) If a case is to be tried by Tehsil Criminal Court or District Criminal Court, the procedure for trials shall be the same as has been provided by Chapter XX, Cr.P.C. and subsection (5) of section 173, Cr.P.C. shall be attracted. While filing a challan before these two Courts, the police shall be bound to produce the witnesses in the Court and the concerned Court shall bind them to appear before it on the date fixed by the Court.

(iii) If a case is to be tried by the Court of Session alone, the procedure for trial shall be one provided under Chapter XXII-A, Cr.P.C. and if the High Court takes to itself the trial of a case, the same Chapter shall be applied.

11. The wisdom of the legislature to introduce subsection (5) of section 173, Cr.P.C. appears to be based on decades' old problem which the litigant public had faced in the Courts by hanging for indefinite period for the fate of their cases. Subsection (5) of section 173, Cr.P.C. in fact appears to have been introduced to further the ends of justice by providing an opportunity of early disposal of cases. In fact the application of Chapter XX and subsection (5) of section 173, Cr.P.C. has been applied and adopted in the public interest which must be adhered to in letters and spirit.

12. The proposed order has repeated finding of this Court to the extent of paras. Nos.60 and 61 and certain directions have been repeated for the Courts below. I am not finding any reason to agree with the said directions as some of them are against Islamic Penal Laws Act and others have been incorporated keeping in view provisions of Chapter XXII-A, Cr.P.C. Suffice it to say that compromise can be entered into by the parties under the IPL Act in cases of Hudood and Qisas, there is no provision in the Act which suggests that the trial Court should give time to the parties to enter into compromise. Similarly purgation of the witnesses is to be conducted by the Court in cases of Hudood and Qisas but there is no provision that the purgation must be conducted in all the cases under the IPL Act. The IPL Act appears to have been enacted keeping in view the needs of the society where it has become almost impossible for the people to get immediate relief rather to wait for years together.

13. In para 20 of the proposed order it has been held that the scope of review on a point of law is negligible if the same is not in violation of any provision of Constitution or law. As has been earlier mentioned it is a case of not only an error of law but a flagrant disregard of law as the correct law has not been enunciated as far as the procedure to be followed by two Members Courts is concerned. The error in the proposed order flows on its very surface as only one aspect

ol the subject controversy has been dealt with. This contention is fortified by para 21 of the proposed order itself wherein it has been observed that the State may amend law so as to create harmony, compatibility in different provisions of the Code. In my considered view the Code of Criminal Procedure may or may not be amended further, the legal position, as far procedure to be adopted by the Courts under Islamic Penal Laws is concerned, will remain same as provided by section 28 of the IPL Act and section 173(5), Cr.P.C. is applicable before the two Members Courts. The cleavage of opinion is not due to absence of harmony in the provisions of law but due to relevant procedural law on the statute book having been ignored. Justice delayed by application of lengthy procedure cannot be justified and still amounts to justice denied.

14. In view of above, this review petition is admitted for regular hearing.

(Sd.)

KHAWAJA SHAHAD AHMED, J ORDER OF THE COURT

In the light of majority opinion, this review petition stands dismissed in limine.

(Sd.)

Khawaja Shahad Ahmed, J

(Sd) (Sd.)

Khawaja Muhammad Saeed CJ. Syed Manzoor Hussain Gilani. J

Petition dismissed.

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